

ELITE TRADERS LOUNGE

Babysitting Services · South Africa

Babysitter Service Agreement

2026 Edition · Independent Contractor Terms for Babysitters

Between Elite Traders Lounge (Pty) Ltd (Reg. K2017318876) ("Elite Traders Lounge") and the registering Babysitter ("the Babysitter"). This Agreement replaces and updates the 2025 edition of the Babysitter Service Agreement, correcting the National Minimum Wage figures below and introducing new verification and payment terms.

1. Parties & Nature of Relationship

The Babysitter engages with Elite Traders Lounge as an **independent contractor**, not as an employee of Elite Traders Lounge or of any Family. Elite Traders Lounge operates a booking and verification platform connecting Babysitters with Families; it is not the Babysitter's employer and does not direct the day-to-day performance of childcare services.

2. Registration & Identity Verification

- **South African citizens and permanent residents** register using a valid South African ID number, verified through Smile ID.
- **Foreign nationals may register as independent freelance babysitters** using a valid passport, provided they also hold and can produce a valid South African work permit, visa, or other authorisation that permits them to lawfully render paid work in South Africa. This requirement exists so that Elite Traders Lounge and the families it serves do not knowingly facilitate a breach of the Immigration Act 13 of 2002.
- A passport-registered babysitter must upload their passport bio-data page and current work permit/visa during verification, and must notify Elite Traders Lounge immediately if that permit expires, is revoked, or is not renewed. A booking may not be accepted or continued using an expired or invalid work permit.
- **Smile ID identity verification is mandatory for every Babysitter** before a profile can be activated or before any booking can proceed. Verification uses facial recognition matched against the submitted ID/passport and typically completes within 5–10 minutes; a failed check can be resubmitted.
- **Proof of address is mandatory for every Babysitter:** a utility bill, bank statement, lease/rental agreement, or municipal account/letter, dated within the last three months and reflecting the applicant's name and residential address.
- **A minimum of one completed reference declaration (Appendix A)** is mandatory for every Babysitter applicant. Elite Traders Lounge may contact the listed reference directly to confirm its contents before activating the Babysitter's profile.
- Elite Traders Lounge displays a **"Verified Identity"** badge on any profile that has passed Smile ID verification, and a separate "Reference Verified" badge once at least one reference has been confirmed. Families and Babysitters are encouraged to only transact with verified profiles.

3. Minimum Wage Compliance

The Babysitter's agreed hourly rate must always fall within the correct Appendix B rate band for their experience level, and must never be lower than the current National Minimum Wage — **R30.23 per hour, effective 1 March 2026** (Government Gazette No. 54075, published 3 February 2026, a 5.0% increase on the R28.79/hour

2025 rate), or the applicable rate at the time of service.

If a rate is entered below the platform's minimum for that level, or below the legal minimum wage, that rate is void and the minimum compliant rate in Appendix B automatically applies. Elite Traders Lounge reviews and updates this figure whenever the Department of Employment and Labour publishes a new Government Gazette rate.

4. Appendix B — Rate Bands & Minimum Booking Hours

Level	Experience	Booking type	Hourly rate band	Min. booking	Commission
1	Entry · 0–1 year	Day	R35 – R45/hr	4 hours	10%
2	Standard · 1–3 yrs, references	Day	R45 – R65/hr	4 hours	12.5%
3	Advanced · 3+ yrs, First Aid/CPR	Day	R65 – R85/hr	4 hours	12.5% – 15%
3	Advanced · night rate	Overnight	R70 – R80/hr	10 hours	12.5%
4	Specialist · overnight/special needs	Overnight	R90 – R100/hr	10 hours	12.5%

Level 3 day commission scales from 12.5% at R65/hour up to 15% at R85/hour. All other bands charge a flat commission rate. Day bookings require a minimum of 4 consecutive hours; overnight bookings require a minimum of 10 consecutive hours.

5. Commission Structure

Elite Traders Lounge's commission is deducted from the total booking fee before the net amount is split to the Babysitter's Paystack account. Worked examples:

Service component	Level	Booking fee	ETL commission	Net to babysitter
4-hr @ R45/hr	1 – Entry	R180	R18 (10%)	R162
4-hr @ R65/hr	2 – Standard	R260	R32.50 (12.5%)	R227.50
4-hr @ R85/hr	3 – Advanced	R340	R51 (15%)	R289
10-hr overnight @ R80/hr	3 – Night	R800	R100 (12.5%)	R700
12-hr overnight @ R100/hr	4 – Specialist	R1 200	R150 (12.5%)	R1 050

6. Payments — Paystack Split Payments

- Elite Traders Lounge does not hold, custody, or take responsibility for any Family or Babysitter funds at any point. All payments are processed through **Paystack**, a licensed South African payment service provider, using Paystack's Split Payment functionality.
- Every Babysitter must have an active Paystack account and must supply the associated Paystack account email address during registration, so Elite Traders Lounge can confirm the account exists before enabling split payments.
- When a booking fee is paid, Paystack's Split Payment infrastructure divides the transaction automatically: the Babysitter's net amount is paid into the Babysitter's own linked Paystack account, and Elite Traders Lounge's commission (per the rate bands in Appendix B) is paid into Elite Traders Lounge's Paystack account, in the same transaction.

- No additional Elite Traders Lounge service or platform fee is charged on top of the commission rates in Appendix B. Paystack's own standard transaction-processing fees (charged by Paystack, not by Elite Traders Lounge) may apply to a payment and are governed by Paystack's own published pricing, not by this Agreement.
- Because Paystack — not Elite Traders Lounge — holds and settles the funds, actual payout timing to a Babysitter's Paystack account follows Paystack's standard settlement schedule. Elite Traders Lounge is not liable for delays caused by Paystack, the Babysitter's or Family's bank, or incorrect Paystack account details supplied by either party.
- Cash payments or any payment arranged outside Paystack fall entirely outside this Agreement and outside Elite Traders Lounge's dispute-resolution, fraud-protection, and payment-guarantee processes.

7. Cancellation Policy

7.1 Family Cancellation (before service rendered)

Cancellation timing	Babysitter compensation	Family refund
≥ 48 hours before booking	R0 (no charge)	100% refund via Paystack
24–48 hours before booking	50% of the agreed net amount	50% refund via Paystack
< 24 hours before booking	75% of the agreed net amount	25% refund via Paystack
No-show (Family absent)	100% of the agreed net amount	R0 refund (full charge)

7.2 Babysitter Cancellation (before service rendered)

Cancellation timing	Babysitter compensation	Family refund
≥ 48 hours before booking	R0 (no charge)	100% refund via Paystack
24–48 hours before booking	25% net (forfeits 75%)	75% refund via Paystack
< 24 hours before booking	50% net (forfeits 50%)	50% refund via Paystack
No-show (Babysitter absent)	R0 (forfeits 100%)	100% refund; profile suspended pending review

7.3 After service commences: if either party cancels after the Babysitter arrives, full payment is due for hours already worked (minimum 1 hour). If the Family requests early departure, payment is due for actual hours worked; no refund applies for early departure initiated by the Family.

8. Code of Conduct

- Arrive on time, follow the Family's written care instructions, and never leave a child unsupervised.
- No smoking, alcohol, or unauthorised guests while on duty.
- Treat Families with respect — discriminatory, abusive, or unsafe behaviour is grounds for immediate suspension.
- Report any injury, incident, or safety concern to Elite Traders Lounge and, where relevant, emergency services, as soon as possible.
- Never share photos or personal information about a Family or child publicly without written consent.

9. Dispute Resolution

- Parties should first attempt to resolve any disagreement directly, within 24 hours of it arising.
- If unresolved, either party may submit a formal complaint to Elite Traders Lounge with the booking reference and supporting evidence (check-in/check-out timestamps, messages, photos).
- Elite Traders Lounge investigates within 5 business days and issues a written decision within 10 business days.
- Dual-party check-in/check-out timestamps recorded through the check-in tool are the primary evidence of worked hours in any dispute.
- Either party may escalate an unresolved dispute to independent arbitration or the CCMA/relevant regulator after the internal process concludes.

10. Termination, Suspension & Right to Refuse Service

- Elite Traders Lounge reserves the right, in its sole discretion, to **refuse, suspend, or terminate service** to any Family or Babysitter who breaches this Agreement, the Code of Conduct, provides false identity, address, reference, work-permit, or banking/Paystack information, or otherwise engages in conduct that Elite Traders Lounge reasonably considers unsafe, fraudulent, or damaging to the platform or to another user.
- This right may be exercised immediately and without prior notice where Elite Traders Lounge reasonably believes a child's safety, a user's safety, or the integrity of the platform is at risk, and with reasonable prior notice in all other cases.
- Refusal or termination of service under this clause does not, by itself, entitle the affected party to any refund or compensation beyond what is expressly provided for in the Cancellation Policy (Section 7) for bookings already confirmed at the time of suspension.
- A party who believes their profile was suspended or refused service in error may lodge an appeal via the Dispute Resolution process in Section 9.

11. Data Protection (POPIA)

- Elite Traders Lounge processes personal information (identity, contact, address, reference, and Paystack account details) strictly to verify identity, facilitate bookings, process payments, and maintain safety records, in line with the Protection of Personal Information Act.
- Identity verification data (Smile ID checks) and reference declarations are stored securely and are not shared with third parties beyond what is required for verification and legal compliance.
- Check-in/check-out timestamps and booking records are retained to resolve disputes and support labour-law compliance.
- The Babysitter may request access to, correction of, or deletion of their personal information (subject to legal retention requirements) by emailing lemo.masethe@elitetraders.co.za.

12. Tax Obligations

- The Babysitter engages as an independent contractor, not an employee of Elite Traders Lounge or of any Family.
- Net income received after commission is taxable under South African law and should be declared to SARS by the Babysitter.
- Elite Traders Lounge does not withhold PAYE and does not provide tax advice; the Babysitter should keep their own transaction records and consult a registered tax practitioner as needed.

13. General Terms

- **Governing law:** This Agreement is governed by the laws of the Republic of South Africa.
- **Entire agreement:** This Agreement, together with the Terms & Conditions published on the Elite Traders Lounge website, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions or agreements.
- **Severability:** If any clause of this Agreement is found invalid or unenforceable, the remaining clauses continue in full force and effect.
- **No waiver:** A failure by either party to enforce any provision of this Agreement is not a waiver of that provision or of any other provision.
- **Assignment:** Neither party may assign or transfer their rights or obligations under this Agreement without the prior written consent of Elite Traders Lounge.
- **Notices:** Notices under this Agreement must be sent to the contact email or address recorded on the party's profile, or to Elite Traders Lounge at lemo.masethe@elitetraders.co.za.

14. Digital Signatures & Electronic Acceptance

This Agreement may be accepted electronically. Clicking “I Accept” (or the equivalent checkbox) during registration or booking is recorded, together with the date, time, and account details of the accepting party, and constitutes a valid electronic signature under the Electronic Communications and Transactions Act 25 of 2002. Where a physical signature is preferred, the signature blocks below may be completed and returned to Elite Traders Lounge.

The Babysitter

Signature: _____

Full name: _____

Date: _____

Elite Traders Lounge (Pty) Ltd

Signature: _____

Name: Lemogang Masethe

Date: _____

Appendix A — Standard Reference Letter & Affidavit Template

Every babysitter applicant must submit at least one completed reference declaration in this format. It protects the reference-giver (by recording exactly what they are confirming and to whom), the babysitter (by giving a clear, verifiable record of good standing), and the family and Elite Traders Lounge (by providing a traceable, contactable, and — where commissioned — sworn statement of character).

REFERENCE DECLARATION / AFFIDAVIT

I, _____ (full name of reference), holding South African ID / passport number _____, residing at _____, declare as follows:

1. I have known _____ (the applicant) for a period of _____ in the capacity of _____ (e.g. previous employer, family friend, colleague, community leader).
2. To the best of my knowledge, the applicant is of good character, trustworthy, and suitable to be placed in a position of care and trust with children.
3. I am aware that this declaration is being provided to Elite Traders Lounge (Pty) Ltd (Reg. K2017318876) and may be relied upon by Elite Traders Lounge and by any family engaging the applicant's babysitting services through the Elite Traders Lounge platform.
4. I consent to being contacted, telephonically or in writing, by Elite Traders Lounge or by a prospective family, to confirm the contents of this declaration.
5. I understand that the information provided above is true and correct, and that knowingly furnishing false information in this declaration may expose me to civil liability and, where made under oath below, to criminal liability for perjury.

Reference contact details — Phone: _____ Email: _____

Signed at _____ on this ____ day of _____ 20__.

Reference signature: _____

Optional — Commissioner of Oaths (for formal affidavit status):

I certify that the deponent has acknowledged that they know and understand the contents of this declaration, which was signed and sworn to before me, and that the regulations contained in Government Notice No. R1258 of 21 July 1972, as amended, have been complied with.

Commissioner of Oaths signature: _____ Full name: _____

Designation / ex officio: _____ Area: _____ Date: _____

Elite Traders Lounge retains a signed copy of this declaration on the applicant's verification file and treats it as a supporting record alongside Smile ID identity verification. A reference given knowingly in bad faith, or later shown to be materially false, may result in the immediate suspension of the applicant's profile pending review.

This document is a plain-language service agreement template prepared for Elite Traders Lounge's platform operations. It is not a substitute for independent legal advice; Elite Traders Lounge is encouraged to have this Agreement reviewed by a qualified South African attorney before relying on it for enforcement purposes.